

24STCV02857 24STCV02857

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-13

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C07%2F13%2F2026

Source SHA-256: c7ffa7554b6dfe3b9813bbd8976752f09f867221b10b4f4b7657347f976cc30b

Case Number: 24STCV02857 Hearing Date: July 13, 2026 Dept: 617

Dept.

617

Date:

7-13-26

Case

#: 24STCV02857

Trial

Date: N/A

ENFORCE SETTLEMENT

MOVING

PARTY: Plaintiff, Roshan Family, LP

RESPONDING

PARTY: Unopposed/Defendants, Vintage Apartment and Michael Glotzer

RELIEF

REQUESTED

Motion

to Enforce Settlement Agreement

SUMMARY

OF ACTION

On

February 2, 2024, Plaintiff Roshan Family, LP filed the instant breach of contract action against Defendants Vintage Apartment and Michael Glotzer for unpaid rent.

RULING: Granted.

Plaintiff moves to enforce the parties' settlement agreement and for entry of judgment in the amount of \$77,079.16. Defendants do not oppose the motion. The unopposed motion is granted, and Plaintiff is entitled to judgment in the requested amount.

"If

parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).)

Strict

compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37.) Accordingly, "parties" under section 664.6 means the litigants themselves, not their attorneys. (*Levy v. Superior Court* (1995) 10 Cal.4th 578, 586 [holding "we conclude that the term 'parties' as used in section 664.6 means the litigants themselves, and does not include their attorneys of record"].) Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985.)

"Section

664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (*Weddington Prods., Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.) When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (*Id.*) The court may not "create the material terms of a settlement," and must instead decide on what terms the parties agreed upon. (*Id.*; *Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1460; *Osumi v. Sutton* (2007)

151 Cal.App.4th 1355, 1360; Fiore v.

Alvord (1985) 182 Cal.App.3d 561, 565-66.) "In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone." (Corkland v. Boscoe (1984) 156 Cal.App.3d 989, 994.)

Under the agreement, Defendants were to pay a total of \$57,269 through a series of installments. [Roshan Decl. ¶ 2, Ex. 1, p. 1.] In the event of default, Plaintiff is entitled to judgment in the amount of \$77,163 less payments made, plus attorney fees and costs incurred by Plaintiff in the litigation. [Ibid.] Plaintiff states that Defendants made \$7,000 in payments but ceased making payments on July 1, 2025. [Roshan Decl. ¶¶ 6-7.] Plaintiff's motion is therefore granted.

Plaintiff is entitled to judgment in the amount of \$77,079.16. This represents the \$77,163 owed under the settlement agreement less \$7,000 in payments made, plus \$6,916.16 in attorney fees and costs. [Isaacs Decl. ¶¶ 2-4.]

Plaintiff to submit a revised proposed judgment reflecting the current department and assigned judge.

Plaintiff to give notice.